

25SMCV02566 25SMCV02566

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25SMCV02566 Hearing Date: July 21, 2026 Dept: 205

Superior Court of
California

County of Los
Angeles – West District

Beverly Hills
Courthouse / Department 205

NORMAN STANLEY
WEINER,

Plaintiff,

v.

CITY OF LOS ANGELES; and DOES 1 through 5, inclusive,

Defendants.

Case No.: 25SMCV02566

Hearing Date: July 21,
2026

[TENTATIVE] ORDER
RE:

PLAINTIFF'S MOTION TO SET ASIDE DISMISSAL PURSUANT TO C.C.P.
§ 473(b)

BACKGROUND

This is a trip and fall case.

Plaintiff Norman Stanley Weiner ("Plaintiff") claims he tripped and fell due to uneven and cracked pavement on a crosswalk at the intersection of Darlington Avenue and San Vicente Blvd. in Los Angeles. Plaintiff sued Defendant the City of Los Angeles ("Defendant") for premises liability, claiming that the City failed to maintain, repair, inspect the crosswalk or supervise and train others to do so, resulting in a dangerous condition. Plaintiff filed the Complaint on May 20, 2025, and personally served the City on June 16, 2025.

On November 14, 2025, this Court held a case management conference ("CMC"). Plaintiff failed to file a CMC statement prior to the CMC. The Court continued the CMC to February 13, 2026, and issued an Order to Show Cause ("OSC") as to why Plaintiff should not be sanctioned for failing to file a CMC statement. On February 13, 2026, Plaintiff did not appear at the CMC, failed to file a CMC statement, and did not file a response to the OSC. Accordingly, the Court dismissed the case without prejudice.

On May 20, 2026, the Court denied Plaintiff's motion to set aside dismissal because the attorney-at-fault declaration did not explain the failure to file the CMC statement for the November 14, 2025 conference, which led in part to the dismissal.

This hearing is on Plaintiff's motion to vacate dismissal pursuant to Code of Civil Procedure section 473, subd. (b), filed on June 1, 2026. Plaintiff seeks to vacate and set aside the dismissal due to counsel's inadvertence, surprise, mistake, and excusable neglect.

LEGAL
STANDARD

Pursuant to Code of Civil Procedure section 473, subd. (b), the trial court has discretion to "relieve a party or his or her legal

representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) Such an application shall be accompanied by a copy of the answer or other pleading proposed to be filed in replacement of the pleading being set aside and shall be made within six months after the judgment, dismissal, order, or other pleading for which dismissal is being sought. (Ibid.)

In addition, if the trial court finds the dismissal was caused by the attorney’s mistake, inadvertence, surprise, or neglect, it must vacate any “resulting default judgment or dismissal entered against the attorney’s client...whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to the attorney’s mistake, inadvertence, surprise, or neglect.” (Code Civ. Proc., § 473, subd.

(b) [mandatory relief not warranted where “default or dismissal was not in fact caused by the attorney’s mistake”]; see *Milton v. Perceptual Dev. Corp.* (1997) 53 Cal.App.4th 861, 867 [The requirement is “not only a credibility testing device” but “also ‘a causation testing device.’”].)

The only statutory limitation of this mandatory relief applies when the court finds the default “was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.” (Code Civ. Proc., § 473, subd. (b).) “Relief may be denied only ‘when the court finds [that] the default was not in fact the attorney’s fault, for example when the attorney is simply covering up for the client. [Citation.]’” (*Rodrigues v. Superior Court* (2005) 127 Cal.App.4th 1027, 1033.)

DISCUSSION

Plaintiff moves for an order setting aside the dismissal and reinstating the Complaint based on the mandatory, or in the alternative discretionary, grounds of attorney mistake, inadvertence, surprise, and/or excusable neglect. (Code Civ. Proc., §473, subd. (b).)

In support of the motion, counsel reiterates the same points as the declaration from the previous motion to set aside, but declares in addition that Attorney Nesheiwat, who was counsel for Plaintiff during the relevant time period, resigned from Plaintiff’s Counsel’s firm. (Booker II Decl., ¶ 7.)

Counsel states "Attorney Nesheiwat's failure to perform in Plaintiff's case directly contributed to her removal from the firm." (Ibid.) After the previous motion to set aside hearing, counsel states he attempted to contact Nesheiwat regarding the noted deficient explanation for "why she did not file the CMC statement for the November 14, 2025 conference," but she has failed to respond. (Id., ¶ 9.) Counsel declares that the motion should be granted because the "isolated lapse in calendaring and case management during a period of staffing transition" will no longer be an issue since Attorney Nesheiwat has been removed from the firm. (Id., ¶ 10.) Counsel also takes responsibility for the lack of appearance as the firm's Senior Managing Attorney and states the case will proceed "without further failures to appear." (Id., ¶ 11.)

Based on the foregoing evidence, Plaintiff moves to set aside the dismissal based on attorney's mistake, inadvertence, surprise, and/or excusable neglect. Counsel argues Plaintiff will be prejudiced and suffer "the harsh consequences of dismissal due to an unintentional procedural error attributable to Counsel's administrative oversight" if the motion is denied because the dismissal "was not the result of dilatory conduct by Plaintiff." (Id., ¶ 10.) However, counsel states Defendant will not be prejudiced by granting this motion, because it appeared at the previous motion to set aside hearing and "did not take any position on Plaintiff's Motion, as they would suffer no harm from the Motion being granted." (Id., ¶ 8.)

Defendant has not filed an opposition to this motion.

Due to the facts presented above, the Court finds the dismissal was due to attorney's mistake, inadvertence, surprise, and/or excusable neglect. Counsel states he has attempted to contact Attorney Nesheiwat who was the counsel of record at the relevant time period to speak on the noted deficiencies in the previous motion to set aside, but she has failed to respond. (Id., ¶ 9.) In addition, as the Court found in its May 20, 2026 Order, "Plaintiff has submitted an attorney-at-fault declaration explaining counsel's failure to file a CMC statement for the February 13, 2026 CMC. Counsel's declaration also explains the failure to file a response to the OSC or to appear at the February 13, 2026 conference." (Minute Order, May 20, 2026.)

The motion is

timely as it was filed within six months from the February 13, 2026 judgment. Further, in the absence of any opposition, Defendant has not demonstrated it will suffer any prejudice by the Court granting this motion. Pursuant to Code of Civil Procedure section 473, subd. (b), the trial court is required to grant relief from a dismissal judgment entered due solely to attorney's mistake, inadvertence, surprise, and/or excusable neglect. (Code Civ. Proc., § 473, subd. (b).) Accordingly, based on the facts presented and counsel's declaration, the motion to set aside dismissal is GRANTED.

CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff's motion to set aside dismissal. The Court further sets a Case Management Conference on September 11, 2026 at 8:30 a.m.

IT IS SO ORDERED.

DATED: July 21, 2026 _____

Edward
B. Moreton, Jr.

Judge
of the Superior Court